

TAB 21



Board of Education Report

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File #: Res-015-23/24, Version: 1

Ms. Gonez, Mr. Schmerelson - Celebrating National Special Education Day and Calling for Increased Special Education Funding (Res-015-23/24) **(Waiver of Board Rule 72)**

Whereas, For the 2023-24 school year the Los Angeles Unified School District proudly serves over 65,000 students receiving special education services, almost one-third of which have moderate-to-severe disabilities;

Whereas, The District provides 38 types of services and supports to students with disabilities in order to provide a free appropriate public education;

Whereas, The chronic underfunding of the federal law now known as the Individuals with Disabilities Education Act of 1975 (IDEA) by the federal government places an additional funding burden on states, local school districts, and taxpayers to pay for needed services, and often means using local budget dollars to cover the federal shortfall, ultimately shortchanging other school programs that students with disabilities often also benefit from;

Whereas, In the 2023-2024 school year, the District plans to spend over \$2 billion in special education costs, with the District's federal IDEA funding reaching only \$133 million, accounting for merely 7% percent of the District's share of costs, woefully short of Congress' commitment upon IDEA's passage to 40 percent of the additional costs necessary to provide a free and appropriate public education to students with disabilities;

Whereas, The grossly inadequate level of funding for special education at both the federal and state level also does not differentiate funding based on the severity of the student's disability and therefore fails to recognize the additional resources required to fully meet the needs of students with moderate to severe disabilities;

Whereas, The majority of the current state funding structure for special education is based on student attendance (AB 602) providing Special Education Local Plan Areas (SELPAs) funding based on their overall student attendance, regardless of how many students with disabilities the SELPA serves or the services they provide; and

Whereas, The District proudly operates 13 Special Education and Career Transition Centers which provide students with a robust instructional program that meets each individual student's unique needs and prepares them and their families for their transition beyond secondary school; now, therefore, be it

Resolved, That the Governing Board of the Los Angeles Unified School District recognizes and celebrates the unique assets and needs of our students with disabilities and is proud to serve them and their families, particularly in light of the shameful historic exclusion of students with disabilities;

Resolved further, That the District formally recognizes December 2 as National Special Education Day this year and every year and encourages all schools, students, and families to celebrate our children with disabilities and the unique assets they contribute to our school communities;

Resolved further, That the Board commits to continued advocacy for additional resources that will adequately resource and sustain the instructional programs and services for our students with disabilities, such as

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increasing California's funding allocations to meet the increases in special education costs, particularly for students with moderate to severe disabilities, Congress significantly increasing the annual appropriation for IDEA, passing the IDEA Full Funding Act (S. 3213/H.R. 5984), as well as the Keep Our Pact Act (S. 72/H.R. 764), to create a mandatory 10-year path to fully fund both IDEA and Title I of the Every Student Succeeds Act; and, be it finally

Resolved, That the Superintendent is directed to develop more regular opportunities for parents and families of students with disabilities to engage with the District to provide meaningful feedback, opportunities for continuous improvement and strengthen partnerships and resources.